

Data Colonialism

Surveillance, Privacy, and Democracy in the UK

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I'm a cybersecurity professional with over 15 years of experience in Cybersecurity and Counter Terrorism. My work focuses on secure system design and network security auditing, ensuring systems are robust, resilient, and trustworthy.

Intended Learning Outcomes

By the end of this lecture, you will be able to:

1. Define data colonialism and explain how it differs from routine, consensual data processing.
2. Identify the surveillance mechanisms operating in the UK today: ANPR, live facial recognition, commercial data brokers, and bulk collection under the Investigatory Powers Act 2016.
3. Evaluate real UK case studies (Clearview AI, Cambridge Analytica) against UK data protection and human rights law.
4. Weigh the security/convenience counter-argument against the civil liberties case, using primary-source quotations from both sides.
5. Identify practical, evidenced routes for challenging surveillance overreach at individual, local, and national level.

Agenda

- Everyday Surveillance
- The Legal Loophole That Isn't
- Naming the System: Data Colonialism
- Why It's Incompatible With Democracy
- What You Can Do
- Quotes Bank: Debate & Discussion
- Closing

What is Privacy ?

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Privacy

The state or condition of being free from being observed or disturbed by other people.

Not about having something to hide — about limiting what makes you exploitable: financially, socially, and psychologically.

Turn and Talk

When is it morally acceptable to breach privacy?

1:55 minutes



Click to sign in and play video

12 Minutes vs. Milliseconds

Starting from one name, it took 12 minutes to find a stranger's photo, hometown, school, address, phone number, and date of birth — the same handful of facts many banks still use to verify a caller's identity. An AI system could compile the same profile in milliseconds.

Privacy as Protection, Not Secrecy

- **Currency:** your data isn't trivia to advertisers and brokers — it's revenue, even for companies that claim not to "sell" it.
- **Weaponisable patterns:** travel routines, family details, and spending habits can be used against you, not just marketed to you.
- **Narrative control:** losing privacy means losing some control over your own decisions — nudged toward choices that serve someone else's interest, too gradually to notice.
- **Freedom:** with privacy, choices are made on your own terms; without it, every choice is monitored, judged, and potentially exploited.

⚡ Predictive pricing is already here

Delta has confirmed it uses AI to individualise fares. A system that can read message content might see that your grandfather just died and that you're now searching for last-minute flights home — and price accordingly. Pricing by *device identifier* rather than named individual is reported to sit outside current US price-discrimination law: the targeting is technically of a device, not a person.

⚡ Profiling before birth

Data entered into pregnancy-tracking apps can be captured and held in a data broker's file years before a child can legally be profiled — then activated for ad targeting the moment that child turns 13, already "full."

Security Models vs. Security Frameworks

✓ Security model

- Abstract representation of security requirements and controls.
- Describes how to protect assets conceptually (e.g., Bell-LaPadula confidentiality model, zero-trust assumptions).
- Focus: theory, logic, access rules.

ⓘ Security framework

- Practical set of policies, processes, and controls aligned to the model.
- Provides implementable guidance (e.g., NCSC Cyber Assessment Framework, ISO/IEC 27001).
- Focus: governance, operationalisation, assurance.

⚠ Why it matters for privacy

- Models guide the “why”; frameworks guide the “how”.
- Combining them ensures privacy principles translate into measurable controls and audits.

UK Legal & Policy Framework

✓ Core principles

- Lawfulness, fairness, transparency
- Purpose limitation & data minimisation
- Accuracy & storage limitation
- Integrity, confidentiality, accountability

Source: UK GDPR & Data Protection Act 2018

ⓘ Key actors

- **Data subjects** – individuals; hold rights.
- **Controllers** – decide why/how data processed (e.g., university).
- **Processors** – act on controller instructions (cloud hosts, analytics providers).
- **Supervisory authority** – Information Commissioner's Office (ICO).

⚠ NCSC guidance packages

- “Top Tips for Staff”
- “Phishing guidance for staff”
- “Security outcomes: secure design, build and maintenance”

Senator Frank Church, NBC's Meet the Press, 17 Aug 1975

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Turn and Talk

Disagree with Senator Frank and state why?

1:55 minutes



Intelligence Agency Collaboration

- National Cyber Security Centre (part of GCHQ) collaborates with MI5, MI6, law enforcement, and DSIT on cyber defence.
- Joint advisory notices with allies (e.g., NCSC + FBI + CISA) warn about emerging threats.
- University sector engagement via National Cyber Security Strategy to protect research and critical infrastructure.

Why it matters for digital identity

- Intelligence insights inform threat models for digital identity systems.
- Shared indicators of compromise (IOCs) accelerate response to credential-stuffing, state-sponsored attacks.
- Collaborative exercises test incident response, ensuring alignment with privacy obligations.

Transparency & accountability

- Oversight through Intelligence and Security Committee of Parliament, Investigatory Powers Commissioner's Office.
- Ensuring proportionality: intelligence sharing must respect citizens' rights and legal constraints.

The Five Eyes

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Evolution of the Five Eyes

✓ Origins

- Post-WWII UKUSA Agreement (1946) between UK, USA, Canada, Australia, New Zealand for signals intelligence sharing.
- Focus on intercepting communications, defending national security.

ⓘ Modern expansion

- Collaboration now spans cyber defence, counter-disinformation, critical infrastructure protection.
- Regular joint statements on ransomware, supply-chain threats, quantum-resilient encryption.

⚠ Emerging challenges

- Balancing secrecy with public trust; addressing lawful access debates.
- Extending cooperation to “Five Eyes+” partners (e.g., Japan, South Korea) for specific missions.
- Ensuring privacy-preserving data sharing within alliance frameworks.

Fourteen Eyes & Beyond

✓ Fourteen Eyes (SSEUR)

- Signals intelligence partnership (SIGINT Seniors Europe) adds Belgium, Germany, Italy, Spain, Sweden to Nine Eyes.
- Focus: cross-border surveillance, counter-terror, cyber defence.
- Highlights how EU and non-EU states collaborate despite differing privacy regimes.

⚠ Privacy considerations

- Cross-jurisdiction sharing challenges domestic oversight and transparency.
- Need to ensure data minimisation, proportionality, and redress mechanisms.
- Drives calls for clearer disclosure to citizens and stronger safeguards when intelligence is repurposed.

📄 41-nation area sharing

- **Computer network exploitation (CNE)** – Five Eyes plus European and Asian partners
- **Club de Berne & Counterterrorism Group** – European intelligence exchange with US participation.
- **Maximator** – Denmark, Germany, France, Netherlands, Sweden focusing on cryptanalysis.
- **NATO Special Committee** – security heads from all 32 NATO members.

Everyday Surveillance You Didn't Consent To

- Over 11,000 automatic number plate recognition (ANPR) cameras across the UK read an estimated 50–60 million plates a day.
- Each read logs make, model, colour, distinguishing marks — even bumper stickers — plus the location and time.
- Records feed into the National ANPR Data Centre and are kept for a year.

 **this isn't hypothetical**

Take your plate off and they still know the car is yours. Every pass adds to a list of everywhere you've been.

Three Questions, One Answer Each Time

Could this happen to me?	Real UK precedent
A stalker who works in policing uses this network to track someone	An ex-Wiltshire Police officer used ANPR, the Police National Computer, and force intelligence systems to track a woman — visiting her home area 31 times before he was caught
The government uses facial recognition to identify everyone at a protest	In May 2026, the Met deployed live facial recognition at a London rally for the first time, scanning an estimated 80,000 faces, with no dedicated legislation governing when or how forces can do it
Period-tracker data and search history are used against someone after a miscarriage or suspected illegal abortion	A woman's internet searches were cited by the judge in her 2015 sentencing for taking abortion pills; a 15-year-old underwent a "digital strip search" of her phone after a stillbirth in 2021; police guidance published in December 2024 explicitly tells officers to check fertility apps and search history in such investigations

They can, and they have — every time.

Thousands of Small Trackers

Cars

Record acceleration, speed, and braking for insurers running "black box" telematics policies. UK law is meant to stop insurers selling that data to third parties — but police and courts can still compel disclosure.

Phones

Monitor app interactions, movement through physical space, every business entered, and the identities of people nearby.

The web

Logs every click, every search, every fraction of a second your eyes linger on content — following you into patient portals and forums you thought were private.

The underlying rule

If technology makes something possible and that something is profitable, companies will do it — regardless of the ethics. Surveillance pricing, once confined to the web, now follows us offline into physical stores.

Eyes of the state

"When I was in justice, my ultimate vision for that part of the criminal justice system was to achieve by means of AI and technology what Jeremy Bentham tried to do with his Panopticon. That is that the eyes of the state can be on you at all times."

— Shabana Mahmood, Home Secretary, Tony Blair Institute event, December 2025

The *Telegraph* reported it in January 2026. Not a leak, not a paraphrase — journalists in the room, audio surfaced, nobody has denied the words.

At the Same Time...

- 15 permanent facial recognition cameras are bolted to lamp posts in Croydon.
- The Met scanned over 3 million faces in 12 months.
- 13 police forces are running the technology.
- The Home Office is expanding from 10 facial recognition vans to 50.

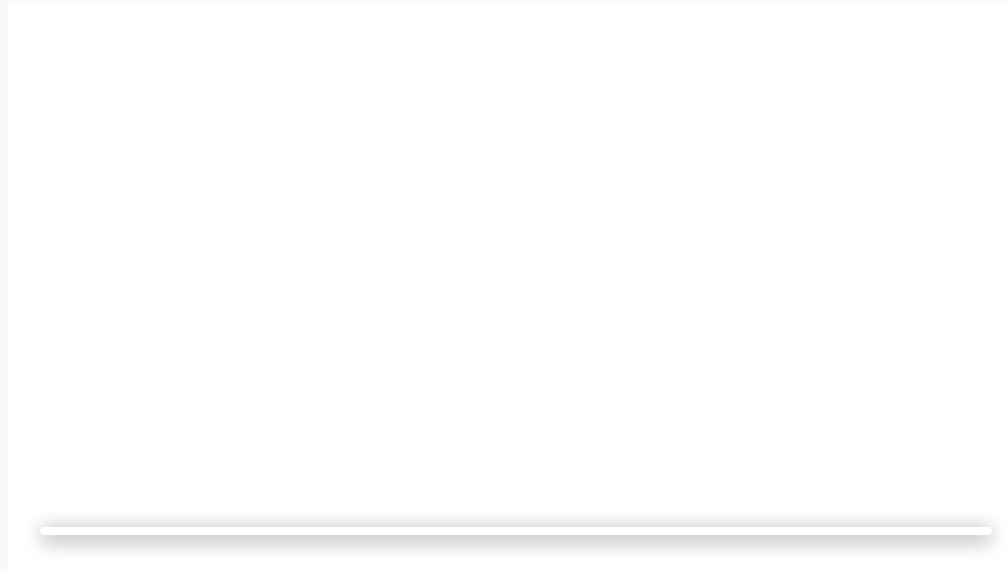
⚡ The weirdest part

A Home Secretary invoking Bentham's surveillance prison on stage is the weirdest part of this story — and it's only the *third* most dystopian thing in it.

The Panopticon

Bentham's 18th-century prison design: one guard sits in a central tower, every cell is visible from it, but prisoners can never tell when they're actually being watched — so they behave as if they always are.

The point isn't constant observation. It's psychological coercion. You don't need to watch everyone. You just need them to believe you might be.



Croydon

A Case Study

From Pilot to Permanent

- **March 2025:** Met Superintendent Mitch Carr wrote to Croydon leaders proposing fixed facial recognition cameras for the town centre. The plan mentioned **two** cameras.
- **October 2025:** switched on — **15** cameras, bolted to lamp posts and buildings across Fairfield ward.

"Not fixed"

The Met calls it a pilot. Asked about the word "permanent," a spokesperson said the cameras "are not fixed." They are screwed to lamp posts.

The Numbers They Lead With — and the Ones They Don't

Metric	Figure
Headline claim	"An arrest every 34 minutes when in use"
Arrests, first 3 months	103 across 13 deployments (later cited elsewhere as 133)
Estimated scans, Croydon programme	128,000+
Hit rate	~0.1%

Who Gets Scanned

Area	Black population
London average	13.5%
Fairfield ward (Croydon camera location)	22.9%
Thornton Heath (LFR van deployment)	40.1%

⚡ Not a coincidence

Over half of the Met's 180 facial recognition deployments in 2024 were in boroughs with above-average Black populations. The decision was taken without meaningful community consultation — and it's cross-party: Conservative Croydon mayor Jason Perry backed it; Shadow Home Secretary Chris Philp called it "the logical next step."

When It Goes Wrong: The Human Cost

✗ **Shaun Thompson, February 2024**

A Black anti-knife-crime volunteer, just back from a community patrol in Croydon, was flagged by the Met's system near London Bridge. Detained nearly 30 minutes, pressured for fingerprints, threatened with arrest despite producing ID. An officer noted he lacked the suspect's facial scars; another said, "This thing is normally really accurate." Thompson: "stop and search on steroids." The Met later settled with him.

⚠ **Not an isolated case**

Big Brother Watch observers have documented the Met misidentifying Black schoolchildren in uniform — lengthy, humiliating, aggressive stops, including fingerprint demands from children. The Met's own independent reviewer, Professor Peter Fussey, noted how distressed and intimidated one child was.

The Bias the Government Sat On

National Physical Laboratory report (dated Oct 2025, published Dec 2025) — false positive rates, Cognitec algorithm, Police National Database:

Face	False positive rate
White	0.04%
Asian	4%
Black	5.5%

⚡ Timeline

NPCC knew from **September 2024**. Rather than stop, they lobbied to keep using the platform. The ICO wasn't told until **December 2025** — by which point over 500,000 searches had already been conducted.

The Legal Loophole

That Isn't Actually a Loophole

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It's Already the Law

No workaround needed

In the US, agencies buy data to get around a constitutional warrant requirement. The UK doesn't need that: the Investigatory Powers Act 2016 — the "Snoopers' Charter" — already gives the state bulk collection and retention powers directly, overseen by the Investigatory Powers Commissioner rather than an ordinary court. Liberty and the UN Special Rapporteur on Privacy call it mass surveillance in its own right.

And the US-style thing too

The Metropolitan Police has confirmed it purchases information from commercial data brokers including Experian, Equifax, and Acxiom. The Home Office's Immigration Enforcement has separately contracted private firms for tools like Wi-Fi traffic interception to track migrants' movements.

Two systems that compound rather than substitute for one another: sweeping bulk powers already on the statute book, *plus* a live commercial data-broker market agencies can buy from as well.

Is This Even Lawful?

The EHRC Says No

"There must be clear rules which guarantee that live facial recognition technology is used only when necessary, proportionate, and constrained by appropriate safeguards. We believe that the Metropolitan Police's current policy falls short of this standard."

— John Kirkpatrick, CEO, Equality and Human Rights Commission, intervening in *R (Thompson and Carlo) v Commissioner of Police of the Metropolis*, August 2025

The EHRC argued the Met's policy is incompatible with **Articles 8, 10, and 11** of the ECHR (privacy, expression, assembly) — and that facial recognition at protests creates a chilling effect on people's willingness to exercise those rights.

The Court Outcome

- High Court heard the case January 2025; judgment handed down **21 April 2026**.
- **The claim was dismissed.** Claimants are appealing.
- Silkie Carlo, Big Brother Watch: "dystopian surveillance tech that turns us into walking ID cards and treats us like a nation of suspects."

⚡ The government's response

Its own human rights regulator said, formally and in court, that the policy falls short of the legal standard. The response: expand the programme fivefold, announce 50 more vans.

The Law That Doesn't Exist

⚡ No Act of Parliament

Not one — not after nearly a decade of deployment, millions of faces scanned, and a 2020 Court of Appeal ruling that South Wales Police's use of it was unlawful. The Home Office's own December 2025 consultation admits a citizen would need four pieces of legislation, a national guidance document, and local force policy just to know if they're being scanned legally.

Sarah Jones, Crime and Policing Minister: "the biggest breakthrough for catching criminals since DNA matching."
Big Brother Watch, in reply: "We would never accept DNA checkpoints across our high streets."

The Commissioner Shambles

- **Oct 2023:** Professor Fraser Sampson resigned as Biometrics and Surveillance Camera Commissioner, writing that the government's proposed bill would make his role "otiose."
- The bill never passed. The role sat **empty for two years**.
- **Nov 2025:** Professor William Webster finally appointed.
- **Dec 2025:** government launches a consultation asking whether a *new* regulator is needed — one month after appointing the current one.
- Consultation ran to Feb 2026 — nine years after police first scanned faces, five years after the Court of Appeal ruled it unlawful.

History Repeating

"If They Have the Powers, They Will Use Them"

Power	Intended for	How it was actually used
Section 44, Terrorism Act 2000	Counter-terrorism	Walter Wolfgang, 82, detained for heckling "Nonsense!" at a Labour conference speech (2005); ECtHR struck the power down in 2010
RIPA 2000	Counter-terrorism, serious crime	Poole BC spied on a mother over a school admissions form (2008, unlawful); a council watched a pigeon feeder; another tailed 8 teenage paper boys; 9,600+ operations in total
Coronavirus Act 2020	Public health emergency	Drones shamed dog walkers; a lagoon was dyed black to deter visitors; two women fined £200 over takeaway teas classed as a "picnic"; 100% of 270 prosecutions were wrongly charged
Public Order Act 1986, s.17	Football hooliganism, far-right marches	Two officers visited a columnist's home on Remembrance Sunday over a year-old tweet; case dropped 8 days later

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Turn and Talk

If you can only do one of two things, one to prevent murder, the other to prevent suicide, which would you choose and why?

1:55 minutes



Data Colonialism

When government and corporations extract private property, resources, land, value, and labour from people — concentrating it for themselves and using it to entrench that system — we call it **colonialism**. The same extractive logic now runs on data, exercised not by trading companies and plantation owners but by tech companies and government agencies.

Data colonialism describes when governments and corporations extract data from people and use it to generate profits and exert control.

Case Studies in the Wild

Company / agency	Data extracted	Sold to / used by
Met Police and other UK forces	Personal and financial records	Purchased directly from commercial data brokers (Experian, Equifax, Acxiom)
Home Office Immigration Enforcement	Wi-Fi traffic and location data via contracted tools (e.g. "MacGrabber")	Used to locate and track migrants
Clearview AI	Facial recognition built from social media/web images without permission; offered free trials to UK law enforcement	Fined £7.5m by the ICO (2022); overturned on appeal (2023); reinstated by the Upper Tribunal (Oct 2025)
Cambridge Analytica / SCL Elections	Psychological profiles from stolen Facebook data, via London-based parent SCL Elections	Sold to the 2016 Trump campaign; Facebook fined £500,000 by the ICO; SCL Elections criminally prosecuted in the UK

The incentive loop

Companies profit from this system, then use those profits to lobby the same politicians who could regulate them — keeping the system in place.

Where the Technology Comes From

⚡ The supply chain

April 2025: a £20m, four-year facial recognition framework awarded to three suppliers. One, Digital Barriers (UK), subcontracts to Israeli firm **Corsight AI** — reported by Al Jazeera and AOAV to be linked to Israeli military surveillance in Gaza and the West Bank.

"Taxpayer money should not be spent contracting companies that are facilitating human rights abuses anywhere."
— Anna Bacciarelli, senior AI researcher, Human Rights Watch

Essex Police declined to confirm whether officers had even met Corsight representatives. The Home Office has not answered due diligence questions.

Zooming Out

Three Programmes, One Machine

Three Programmes, Different Departments

Programme	Owner	Stated purpose	Status
Live facial recognition	Home Office / Met Police	Crime detection	No governing Act; expanding 10 → 50 vans
Online Safety Act (age verification)	DSIT / Ofcom	Child protection online	Live since July 2025
Digital ID ("BritCard")	Cabinet Office	Right-to-work checks	Compulsion dropped Jan 2026; infrastructure retained

⚠ Two briefings, one truth

The government's own digital ID consultation states: "police facial recognition **may include access to biometric data held by government.**" The same week, Minister Darren Jones told the public there was no link.

Online Safety Act, in Numbers

- Age verification went live **July 2025**.
- UK VPN usage spiked ~**1,400%** within days.
- Ofcom issued a record **£1.35m** fine on 8579 LLC.
- Apple pulled Advanced Data Protection from the UK.
- Signal has said it will leave the UK entirely rather than comply with encryption-breaking demands.

Digital ID, in Numbers

- Starmer announced mandatory right-to-work digital ID, **September 2025**.
- Petition against it: nearly **3 million** signatures — 4th largest in UK history.
- **January 2026**: partial U-turn — compulsion dropped, mandatory digital checks kept.
- gov.uk One Login: **16.6m+** accounts across 220+ services already.
- gov.uk Wallet driving licence pilot launched **February 2026**.
- OBR three-year cost: **£1.8 billion**.

UK Digital Identity Proposal

- Department for Science, Innovation and Technology (DSIT) is developing a **UK digital identity and attributes trust framework**.
- Aims to let citizens prove who they are online using reusable credentials issued by certified providers.
- Built on principles: privacy, transparency, interoperability, proportionality.

Implications for students

- Simplified access to government, banking, rental services.
- Increased responsibility to safeguard digital wallets/identity apps.
- Expect reliance on secure devices, MFA, biometric verification.
- Potential for cross-border recognition (e.g., EU digital identity).

Open issues

- How will consent and data minimisation be enforced?
- What happens when identity providers are breached?
- How to include people without passports/driver's licences and avoid digital exclusion?
- Oversight: ICO, DSIT certification regime, independent audits.

The Honest Counter–Argument

✓ What's genuinely true

No single document says "we are building a total surveillance state." The departments genuinely are separate. Digital ID is no longer mandatory, officially. Post–Southport prosecutions used existing laws, not the Online Safety Act.

⚡ But the convergence is real

A national photo register, plus a national facial–matching service, plus an age–gated internet, plus expanding facial recognition cameras, creates the technical *capacity* for a surveillance system — regardless of whether any single minister intended it.

Turn and Talk

Does it matter whether there's a "master plan," if every department's separate piece still fits together into the same machine?

4:55 minutes



Why It's Incompatible

With Democracy

Rights Undermined, Regardless of How the Data Is Used

Right (Human Rights Act 1998 / ECHR)	Undermined by
Freedom of expression (Article 10)	Profiling and the destruction of anonymity
Freedom of assembly and association (Article 11)	Facial recognition and surveillance at protests and of relationships
The right to a fair hearing	Opaque algorithms making decisions about us, with no dedicated law yet governing tools like live facial recognition
Right to respect for private life (Article 8)	Digital lives constantly monitored, mined, and monetised

☞ Cuts across the political spectrum

Data colonialism diminishes limited government, personal responsibility, and private property. It weakens freedom, equality, civil rights, and the value of consent. The power it concentrates in corporations and government agencies is power taken from the people — "which is where it needs to reside for democracy to thrive."

Turn and Talk

What lines we shouldn't cut through?

1:55 minutes



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Turn and Talk

Would peace and safety justify the cost?

1:55 minutes



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Turn and Talk

What message do you want to send to the public?, what data you are going to use? and through which means you are going to send the message?

4:55 minutes



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Mission Accomplished

Closing Takeaways

Closing Takeaways

- Any step forward is a positive step — this doesn't need to be adopted all at once.
- Always question why an organisation is asking for a given piece of information. Most of the time, it doesn't actually need it.
- Make informed, intentional decisions about what you share, rather than defaulting to "yes."



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